

Commission for Diversity Inclusion and Community Relations (DICR)
Complaint Screening Process Working Group
May 12, 2015 Meeting Minutes
Library-Main Conference Room
6pm-8pm

Working Group Members Present: Kea Van der Ziel (KZ), Anthony Naro (AN), Ernest Frey (EF)
Working Group Members Not Present: None
Commission Members Present: Alex Coleman (AC), Sandy Batchelder (SB)
2 members of public

1. Meeting minutes from April 22 and April 30 approved with modifications after discussion.

John Doe (JD) trespass issue discussed. JD sent AN and AC an email prior to the meeting. The email was in fact a chain of prior emails between various parties. Because the prior emails were part of the email sent by JD the entire chain was made part of the record. The email contains the names of two juveniles which the Working Group (WG) agreed should be redacted. The WG also agreed that phone numbers and email address which are not public will be redacted as well.

After the email was discussed WG discussed the matter further and unanimously agreed that the WG would recommend to DICR that it take no action on JD's complaint. The WG further unanimously agreed make the following recommendation to DICR "We recommend that in the near future the Commission for Diversity, Inclusion, and Community Relations look into the issue of No Trespass Orders in the town of Brookline. We are specifically concerned with the Town's procedures, if any, for issuing such orders, amending such orders, as well as the number and nature of such orders issued in recent history." Both AN and AC presented recommendations to the WG for discussion. Those recommendations were made a part of the record and are attached to the minutes. The recommendations relating to JD were rescinded after review of the aforementioned email from JD. A member of the public originally brought a document to discuss with the WG concerning JD however withdrew the document after the issue was mooted by the WG's vote.

1. Complaint Process Discussion

The WG discussed the following sections of the bylaw in detail: 3.14.2, 3.14.3. The WG also discussed the present complaint reporting process. Currently it appears that all complaints begin and end with the Chief Diversity Officer (CDO). If the CDO finds that the complaint lacks merit then the complainant does not have any further remedy. The question then became whether a complainant should be able to go to either the CDO or DICR in the first instance and then go to the other if their complaint is not found to be with merit, or should the complainant only be able to go to CDO in the first instance with the right to appeal to the DICR? The bylaw

appears to provide for either process. EF stated a position in favor of the latter whereas AN stated a position in favor of the former. KZ suggested a vote on the matter. At this time KZ also inquires who at the table were voting members. It was agreed that AC and SB should be voting members as they have invested equal time in the WG and have been voting informally in the past, (this was never an issue as the WG has not had any significant disagreements after discussion on any issue). Rather than call for a vote on this issue the WG decided that it would want to hear from LG at its next meeting.

Meeting adjourned. Next meeting June 4, 2015, 6pm-7:30pm.

Agenda:

1. 5/12/15 meeting minutes approval
2. Complaint Process, discussion and possible vote.